TCD 001/2024 Architeriors Interior Design (L.L.C) v Emirates National Investment Co (L.L.C)

JANUARY 29, 2026 TECHNOLOGY AND CONSTRUCTION DIVISION - ORDERS

Claim No: TCD 001/2024

IN THE COURTS OF DUBAI INTERNATIONAL FINANCIAL CENTRE

IN THE COURT OF APPEAL

BETWEEN

ARCHITERIORS INTERIOR DESIGN (L.L.C)

Claimant/Respondent

and

EMIRATES NATIONAL INVESTMENT CO (L.L.C)

Defendant/Appellant

ORDER WITH REASONS OF H.E. CHIEF JUSTICE WAYNE MARTIN

UPON the Order with Reasons of H.E. Chief Justice Wayne Martin dated 30 December 2025 (the "Order")

AND UPON the Claimant's Statement of Costs and submissions dated 13 January 2026

AND UPON the Defendant's submissions dated 22 January 2026

IT IS HEREBY ORDERED THAT the costs to be paid by the Defendant to the Claimant pursuant to the Orders are assessed in the amount of AED 44,000.00.

Issued by:

Delvin Sumo

Assistant Registrar

Date of issue: 29 January 2026

Time: 2pm

SCHEDULE OF REASONS

1. On 30 December 2025, the Defendant's Renewed Application for Permission to Appeal was dismissed and the Defendant was ordered to pay the Claimant's costs of the Renewed Application to be assessed on the standard basis. Directions were made for the service of a Statement of Costs and for the exchange of submissions on the subject on the basis that the costs would be assessed by a process of immediate assessment on the papers.

2. The Claimant's Statement of Costs claims a total of AED76,750.00. The Statement sets out the hourly rates claimed in respect of each fee earner providing services to the Claimant. Those rates are well within the rates promulgated in the currently applicable Registrar's Direction.

3. The work required to be done in response to the Renewed Application was essentially limited to the preparation and filing of a skeleton argument in opposition to the Application, together with the preparation of the Statement of Costs. The amount claimed is made of approximately 34 hours spent in preparation of the skeleton, and three hours in attendances upon the client.

4. The Defendant submits that the costs claimed are unreasonable and disproportionate because:

- The grounds of appeal were the same as the grounds advanced in the Initial Application for permission to appeal;
- The skeleton served in opposition to the Renewed Application drew heavily upon the skeleton served in opposition to the Initial Application and incorporated substantial portions of the first skeleton by reference;
- The second skeleton is shorter than the first; and
- The substantial analytical and drafting work had already been completed in preparation of the first skeleton.

5. The Defendant further contends that client attendances of three hours were unnecessary, given that the issues raised in the Renewed Application were unchanged from the Initial Application.

6. There is force in the Defendant's submissions. A total of 34 hours is an excessive amount of time for the preparation of a skeleton which dealt with substantially the same issues as a skeleton which had been prepared and filed in opposition to the Initial Application.

7. A reasonable amount proportionate to the work involved is AED 44,000.00 (approximately USD 12,000) and the Claimant's costs will be assessed in that amount.